

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

9. STEVE GIRDLESTONE V. ASHLEY GIRDLESTONE

PFL20160763

Petitioner's Requests for Orders

Petitioner has filed three Requests for Orders (RFOs) since the last hearing on January 29, 2026, which was a review hearing set on Petitioner's RFO. Petitioner filed RFOs on February 18, 2026, April 2, 2026, and April 29, 2026. It appears all the RFOs were served, however, there are defects in service. Despite the Defects, Responsive Declarations have been filed, which do not raise the issue of defective service, therefore, the court deems the issue to have been waived.

Minor's Counsel Filed a Responsive Declaration on April 28, 2026.

Minor's Counsel filed an Amended Responsive Declaration on April 29, 2026.

Minor's Counsel filed a Responsive Declaration on May 5, 2026. It was served the same day.

Respondent filed a Responsive Declaration on June 11, 2026, which was served the same day. Respondent opposes Petitioner's requests.

Respondent's Requests for Orders

Respondent has filed two RFOs since the January 29, 2026, hearing. The first was filed on April 17, 2026, and the second on April 23, 2026. Proof of Service shows Petitioner and Minor's Counsel were electronically served on April 27, 2026, which is not in conformance with Family Code section 215. Upon review of the court file, there is no Proof of Service for the April 23, 2026 RFO, however, both Petitioner and Minor's Counsel have filed Responsive Declarations to the RFO and do not raise the issue of the lack of service, therefore, the court deems it to have been waived.

Minor's Counsel filed a Responsive Declaration on May 5, 2026. It was served the same day.

Petitioner filed a Responsive Declaration on April 29, 2026. It was served on April 30, 2026.

Petitioner filed a Responsive Declaration on June 2, 2026. It was served on June 2, 2026.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #9: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.